

26VECV014051 26VECV014051

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-13

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Case Number: 26VECV014051 Hearing Date: August 13, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

GEORGE

BOYADZHYAN,

Plaintiff,

vs.

CHRISTINE AGOPIAN a/k/a CHRISTINE

ZILIFIAN and DOES 1-10, inclusive,

Defendants.

CASE NO: 25VECV07301

ORDER

RE:

PLAINTIFF'S

DEMURRER AND MOTION TO STRIKE THE AFFIRMATIVE DEFENSES

CONTAINED

IN ANSWER OF

DEFENDANT,
CHRISTINE AGOPIAN

Dept. W

8:30 a.m.

August 13, 2026

ORDER: The Court SUSTAINS the
demurrer to Defendant's answer as to all thirty-two causes of action with leave
to amend. The Court DENIES Plaintiff's Motion to Strike as MOOT.

Background

This is a conversion case. In 2025, Plaintiff George Boyadzhyan
purchased a house in Encino, California. While not specifically alleged, it
appears from the Complaint that Defendant, Christine Agopian, lives in the
house. Defendant's relationship to Plaintiff is also unclear.

Over the next year and a half, Plaintiff spent hundreds of thousands of
dollars on various expenses for both the house and for Defendant. These lavish
expenses include \$60,000 on furniture, \$240,000 on jewelry, and \$60,000 on
clothes and handbags. Plaintiff also alleges that he and Defendant entered into
an oral contract. whereby Plaintiff allegedly agreed to lend Defendant \$190,000
to pay for her children's school tuition. Defendant was then obligated to repay
this loan, "as, if, and when Plaintiff demanded."

Plaintiff alleges that, on March 6, 2026, Defendant removed the
furniture, jewelry, clothing, and handbags from the residence without
Plaintiff's knowledge. Plaintiff alleges that he owns all of these items, and
that he did not consent to their removal.

On March 10, 2026, Plaintiff brought suit against Defendant, alleging
two causes of action: 1) conversion of nearly \$360,000 worth of property, and
2) breach of oral contract.

On April 10, 2026, Defendant filed her Answer.

On April 17, 2026, Plaintiff demurred to the Answer as to all 32 affirmative defenses.

On July 2, 2026, this Court heard this motion. The Court continued the hearing to August 13, 2026, so that the parties could meet and confer properly.

Now, the Court once again hears this demurrer.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Based on his initial submission, Plaintiff failed to meet and confer over this motion. According to Plaintiff's own declaration, "I was unable to meet and confer with Defendant's counsel for successful resolution." (Sacks Decl. ¶ 5.) The closest Plaintiff came to a proper meet and confer was that, on April 13, 2026, he, "sent correspondence via e-mail to counsel for Defendant regarding Defendant's boilerplate affirmative defenses and the deficiencies in his Answer." (Id. ¶ 4.) However, under CCP § 430.41(a), a meet and confer via email is insufficient.

Based on this declaration, this Court concluded that Plaintiff failed to meet his meet and confer obligations. The Court continued the hearing to August 13, 2026, and ordered the parties to meet and confer in person or via telephone. (Minute Order 7/2/26.) It is unclear if the parties complied with this order.

Discussion

i)

Demurrer

Plaintiff demurs to all 32 of Defendant's affirmative

defenses for failure to allege sufficient facts, and for uncertainty.
(Demurrer pp. 3:4-9:15.)

a) Uncertainty

First, Plaintiff demurs based on uncertainty. A demurrer for uncertainty is sustained when the pleading fails to sufficiently apprise the other party of the claims against them. (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

“Demurrers for uncertainty are disfavored and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Ibid [internal quotes omitted].) Here, the Court has reviewed the Answer and finds that Defendant’s answer is clearly organized and coherent, and thereby fairly apprises Plaintiff of the alleged affirmative defenses.

Thus, the Court **OVERRULES** this demurrer for uncertainty as to all thirty-two affirmative defenses.

b) Failure to Allege
Sufficient Facts

Next, Plaintiff argues that Defendant fails to allege sufficient facts to support these defenses. A demurrer to an answer may be appropriate if “[t]he answer does not state facts sufficient to constitute a defense [or] [t]he answer is uncertain.” (CCP § 430.20(a-b).) The defendant bears the burden of proof to establish any new matters. (Harris v City of Santa Monica (2013) 56 Cal.4th 203, 239.) An affirmative defense is considered a “new matter” beyond a general denial. (CCP § 431.30(b)(2).) Thus, the answer must allege the facts on which the defense is founded. (See California Trust Co. v. Gustason (1940) 15 Cal.2d 268, 273.)

Here, Plaintiff’s demurrer contains no specific analysis as to any of these affirmative defenses. Instead, Plaintiff lists out all 32 defenses and then block-quotes legal rules. (Demurrer, pp. 3:4-9:15; see also, Demurrer, pp. 10:8-11:16.) Thus, the Court has little analysis to work with.

That being said, a cursory reading of the Answer shows that Defendant has not pled their defenses with any degree of factual specificity. Instead, they state each defense as generally as possible. (See generally, Answer.) For example, Defendant's twenty-eighth affirmative defense for Lack of Consideration states, "AS AND FOR A SEPARATE, DISTINCT AND TWENTY-EIGHTH AFFIRMATIVE DEFENSE to the Complaint and each and every cause of action thereof, Plaintiff fails to provide valid or adequate consideration." (Answer, p. 8:13-17.) This statement lacks any application of the facts, such as the terms of the allegedly improper agreement. Thus, this affirmative defense, like all the others, lacks factual specificity.

Under California case law, an answer must allege facts "as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint." (FPI Develop., Inc. v. Nakashima (1991) 231 CA3d 367, 384.) Defendant's Answer fails to meet this standard and is therefore subject to demurrer.

For these reasons, the Court SUSTAINS the demurrer as to all thirty-two causes of action with leave to amend.

ii)

Motion to Strike

Plaintiff also briefly moves this Court to strike all thirty-two affirmative defenses from this Complaint. (Demurrer, p. 11:19-26.) Given that the Court has already sustained the demurrer with leave to amend as to all thirty-two of the claims, this issue is moot.

For this reason, the Court DENIES Plaintiff's Motion to Strike as MOOT.

Conclusion

The Court SUSTAINS the demurrer as to Defendant's answer to all thirty-two causes of action with 20 days' leave to amend. The Court DENIES Plaintiff's Motion to Strike as MOOT.

IT

IS SO ORDERED.

Plaintiff TO GIVE NOTICE.

August 13, 2026